

Form 9C – Respondent’s statement of facts and contentions

Industrial Relations Act 2016, section 989

seal

Information

- Use this form to state your facts and contentions. Clearly and concisely specify the contentions in this matter.
- Please read this form carefully. Please complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the rejection of your form.

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Appellant:

CORY LEA SHEPHERD

v

Respondent:

WORKERS’ COMPENSATION REGULATOR

Facts

1. At the time of lodging the application for workers’ compensation (‘application’) with WorkCover Queensland (‘WorkCover’) on 1 July 2024 for a psychological injury, the appellant was employed by the Metro South Hospital and Health Service as an Administration Officer, based at Logan Hospital.
2. By decision dated 13 September 2024, WorkCover advised the appellant of the decision to not accept the application. The decision of WorkCover was confirmed by the respondent’s review unit by way of reasons for decision dated 24 October 2024.
3. The appellant’s Notice of Appeal was filed on 26 November 2024.
4. As this appeal is to be determined as a hearing *de novo*, the appellant bears the onus to prove that there was sustained an injury in accordance with the provisions of the *Workers’ Compensation and Rehabilitation Act 2003* (‘WCRA’).
5. To do so, the appellant must prove, on the balance of probabilities, that:
 - (a) the appellant suffered a personal injury that is a psychiatric or psychological disorder;
 - (b) the injury has arisen out of, or in the course of employment with the employer;
 - (c) employment was a significant contributing factor to the injury; and
 - (d) the injury did not arise out of, or in the course of:

- (i) reasonable management action taken in a reasonable way by the employer in connection with the appellant's employment;
- (ii) the appellant's expectations or perception of reasonable management action being taken against the appellant; and
- (iii) action taken by WorkCover in connection with the appellant's application for compensation.

6. The respondent admits the allegations contained in paragraphs 2 and 3 of the appellant's statement of facts and contentions ('statement').
7. The respondent does not admit paragraph 4 of the appellant's statement and says that these are matters for determination by the Commission at a hearing.

Allegation - Stressor 1, Victimisation in the workplace

8. The respondent does not admit the allegations in paragraph 5 of the appellants statement because there are no particulars or details to respond to. The respondent does not admit that Ms Taylor or Ms Reese reacted negatively or inappropriately to workplace concerns raised by the appellant.
9. With respect to paragraph 6 of the appellant's statement, the regulator:
 - (a) admits that the appellant did text Ms Taylor on or about 4 April 2023;
 - (b) says this pay period involved the Easter weekend of 8 and 9 April 2023;
 - (c) does not admit the remainder of the allegation because the text message itself provides the accurate information;
 - (d) says that the appellant was rostered in an equitable way over the Easter period and that the appellant would not have earned \$1,500.00 less than his colleagues;
 - (e) says the actions of Ms Taylor were reasonable in all respects.
10. With respect to paragraph 7 of the appellant's statement, the regulator:
 - (a) admits that the appellant sent an email dated 7 August 2023;
 - (b) does not admit the remainder of the allegation because the email message itself provides the accurate information;
 - (c) says that Ms Reese responded to this email and provided other emails to address the appellant's concerns;
 - (d) says Ms Reese met with the appellant on 10 August 2023 and sent follow-up emails on 29 August 2023 and 8 September 2023 to address the appellant's issues;
 - (e) says that Ms Taylor emailed the appellant on 14 November 2023 to discuss compliance with shift and break time procedures and to arrange a meeting for 15 November 2023;
 - (f) says the actions and responses from Ms Reese and Ms Taylor were reasonable in all respects.
11. With respect to paragraph 8 of the appellant's statement, the regulator:
 - (a) admits that the Ms Taylor did remove pages from the Communication Book;
 - (b) does not admit that this occurred in February 2024 because records show that this occurred on or around 6 June 2023;
 - (c) says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email;
 - (d) says this event occurred after Ms Taylor sent an email to the Logan Switch team at 9.57 am with a reminder about the correct use of the Communications Book;
 - (e) says the actions of Ms Taylor were reasonable in all respects.

12. With respect to paragraph 9 of the appellant's statement, the regulator:
 - (a) does not admit the date of the incident and says that the accurate date is 14 January 2024;
 - (b) says that on 14 January 2024, the appellant sent a text message and email advising Ms Taylor of his expected lateness for work and that these communications provide an accurate account of the events;
 - (c) admits Ms Taylor arranged for another worker to cover the appellant's shift for that date;
 - (d) says that the actions of Ms Taylor were reasonable in all respects.
13. With respect to paragraph 10 of the appellant's statement, the regulator does not admit this event occurred in April 2024 or at all.
14. With respect to paragraph 11 of the appellant's statement, the regulator does not admit the date of this event as 1 May 2024 because the respondent says this occurred over the period of 13 May to 15 May 2024.
15. The regulator says that the following events occurred over 13 May 2024 to 15 May 2024:
 - (a) the appellant had difficulty in attending work on his rostered shifts (on 13 May 2024 to 15 May 2024) and did not comply with the processes of properly notifying Ms Taylor or manager of his absences, the 'on-call process';
 - (b) Ms Taylor raised these issues with the appellant via email on the 14 May 12.08pm;
 - (c) the appellant then sent an email to many people at the workplace on 15 May 1.15pm;
 - (d) Ms Taylor then raised this as an issue with Ms Reese at 1.20pm;
 - (e) Ms Reese having sought advice from Human Resources, emailed the Appellant at 6.23pm;
 - (f) the appellant did not want to retract his email;
 - (g) the email was ultimately removed from the server;
 - (h) says that the actions of Ms Taylor and Ms Reese were reasonable in all respects.
16. With respect to paragraph 12 and 13 of the appellant's statement, the regulator does not admit the events as alleged and repeats and relies on paragraph 15 of this document in reply.
17. With respect to paragraph 14 of the appellant's statement, the regulator:
 - (a) admits that the appellant did make a complaint as alleged but says the complaint itself has the accurate information;
 - (b) does not admit that the content of the complaint;
 - (c) says that the conduct and response of Ms Taylor was reasonable in all respects.
18. With respect to paragraph 15 of the appellant's statement, the regulator admits that the appellant sent an email on 15 May 2024 and repeats and relies on paragraph 15 of this document in reply.
19. With respect to paragraph 16 of the appellant's statement, the regulator admits the allegation.
20. With respect to paragraph 17 of the appellant's statement, the regulator:
 - (a) admits that the appellant and Ms Taylor had a series of email exchanges on 20 May 2024 and that this correspondence provides accurate information about the interactions;
 - (b) says that the appellant was not required or given authority to do any updating work;
 - (c) does not admit that the appellant advised Ms Taylor that he was exhausted by the situation;
 - (d) says that in the circumstance, the actions of Ms Taylor were reasonable in all respects.

21. With respect to paragraph 18 and 19 of the appellant's statement, the regulator admits the allegations.

Allegation – Stressor 2, Failure to pay entitlements in full and in a timely matter

22. With respect to paragraphs 20 to 22 of the appellant's statement, the regulator:

- (a) admits that the appellant raised various issues about his pay over the period of 2023 and 2024;
- (b) says that all raised issues were investigated in a timely manner;
- (c) says that any discrepancies or errors were remedied in a timely manner;
- (d) the appellant was not entitled to 'Public Holiday not Worked' amounts and was paid a public holiday allowance instead, where appropriate;
- (e) says that the process was reasonable in all the circumstances;
- (f) does not admit that there are any outstanding underpayments for the appellant;
- (g) says the actions of management were reasonable and taken in a reasonable way.

23. With respect to paragraphs 23 to 31 of the appellant's statement, the regulator:

- (a) admits that the emails occurred on or around those dates;
- (b) repeats and relies on paragraph 22 of this document in reply;
- (c) says that for the period of 30 March 2024 (paragraph 23), the appellant was not entitled to 'Public Holiday not Worked' amounts and was paid a public holiday allowance instead;
- (d) the amended pay slip for this period 24 April 2024 shows the correct entitlement;
- (e) says that the roster provided equitable hour and conditions for all staff;
- (f) says the action of management were reasonable and taken in a reasonable way.

24. With respect to paragraphs 32 of the appellant's statement, the regulator does not admit that the Public Holiday Issue was not corrected for the reasons provided in paragraph 23 of this document.

Allegation – Stressor 3, Fatigue due to rostering

25. With respect to paragraph 33 of the appellant's statement, the regulator admits that there is a leave fatigue policy but says the contents of this document and the *Hospital and Health Services General Employee Award State 2015* ('the Award'), define the operative circumstances of the leave and payments, where relevant.

26. With respect to paragraph 34 of the appellant's statement, the regulator admits the allegation and says the contents of this agreement provide the accurate terms.

27. With respect to paragraph 35 of the appellant's statement, the regulator admits the allegation.

28. With respect to paragraph 36 of the appellant's statement, the regulator does not admit the allegation and says at no stage did the appellant seek to change or alter the terms of the agreement.

29. With respect to paragraph 37 of the appellant's statement, the regulator does not admit the allegation and says further that this issue is not relevant to the determination of the issues at appeal.

30. With respect to paragraphs 38, 39 and 41 of the appellant's statement, the regulator does not admit the allegation.

31. With respect to paragraph 40 of the appellant's statement, the regulator does admit the allegation and says that this was a result of human error and not intentional or repeated.
32. With respect to paragraph 42 of the appellant's statement, the regulator admits that the appellant took leave on 19 March 2024 but says this was paid leave.
33. With respect to paragraph 43 of the appellant's statement, the regulator says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime.

Contentions

34. The regulator does not admit paragraphs 44, 47 to 54 of the contentions and says that these are matters to be determined by Commission at appeal.
35. With respect to paragraph 45 and 46 of the appellant's contentions, the respondent admits that the appellant is a worker in accordance with s11 of the WCRA.
36. The regulator contends that any management action involved in the causation of any injury to the appellant was reasonable management action taken in a reasonable way.

Decision sought

1. The appeal is dismissed.
2. The respondent's decision dated 24 October 2024 is confirmed.
3. The appellant pay the respondent's costs of the hearing.

Filed by			
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